

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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SHEMELL CLARKE,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
JEAN M. GALLIARD (Tax No. 943263),
SERGEANT THOMAS GARRITY (Tax No.
933798), POLICE OFFICER RAY NAVEDO (Tax
No. 922861).

Defendants.

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FIRST AMENDED

COMPLAINT

11-CV-4763(CBA)(VVP)

Jury Trial Demanded

PRELIMINARY STATEMENT

1. This is a civil rights action, alleging that the City of New York and several New York City Police Officers violated plaintiff's rights under 42 U.S.C. § 1983, the Fourth and Sixth Amendments to the United States Constitution. Specifically, plaintiff alleges that, on April 1, 2011, defendants falsely arrested him, used excessive force and made false allegations about him to the Kings County District Attorney's Office. Plaintiff seeks compensatory and punitive damages, attorney's fees and costs, and such other and further relief as the court deems just and proper.

JURISDICTION & VENUE

2. This action is brought pursuant to 42 U.S.C. § 1983 and the Fourth and Sixth Amendments to the United States Constitution. Jurisdiction is conferred upon this Court by 28 U.S.C. §§ 1331 and 1343.

3. Venue is proper here pursuant to 28 U.S.C. § 1391.

PARTIES

4. Plaintiff is a resident of the State of New York.

5. The City of New York is a municipal corporation organized under the laws of the State of New York.

6. Police Officer Jean Galliard, Police Officer Ray Navedo and Sergeant Thomas Garrity (the “officers”) are New York City Police Officers who were acting under color of state law and in their capacities as City law enforcement officers at all relevant times. The officers are liable for directly participating in the unlawful acts described herein and for failing to intervene to protect plaintiff from unconstitutional conduct. These defendants are sued in their individual capacities.

STATEMENT OF FACTS

7. Plaintiff is a 19 year-old male. At or about 9:00 p.m. on April 1, 2011, plaintiff was at a New York City Housing Authority development known as Flatbush Gardens in Brooklyn, New York.

8. Plaintiff was going to buy a party ticket from a friend who lives there.

9. The officers came on the floor and several individuals on the floor ran.
10. Plaintiff did not run.
11. One of the officers punched plaintiff in the right eye causing it to bleed.
12. Plaintiff was thrown to the floor and handcuffed.
13. Despite the fact that his eye was bleeding plaintiff was not taken to a hospital.
14. Plaintiff was taken to the 67th Precinct where he remained for about 14 hours.
15. Plaintiff was then taken to Brooklyn Central Booking.
16. From Central Booking, plaintiff was taken to Kings County Hospital where he received three stitches for his eye.
17. Plaintiff was then taken back to Central Booking, where he was held for a total of over 30 hours.
18. At arraignment was released on his own recognizance.
19. His criminal charges were ultimately adjourned in contemplation of dismissal.

20. Plaintiff suffered damage as a result of defendants' actions. Plaintiff was deprived of his liberty, suffered emotional distress, pain and suffering, mental anguish, fear, anxiety, embarrassment, and humiliation.

**FIRST CLAIM
(FALSE ARREST)**

21. Plaintiff repeats the foregoing allegations.
22. No officer observed plaintiff commit a crime on April 1, 2011.
23. At no time on April 1, 2011 did plaintiff commit a crime.
24. Accordingly, defendants violated the Fourth Amendment because they arrested plaintiff without probable cause.

**SECOND CLAIM
(UNREASONABLE FORCE)**

25. Plaintiff repeats the foregoing allegations.
26. In the course of arresting plaintiff, several officers beat him for no reason.
27. This use of force was objectively unreasonable.
28. Accordingly, defendants violated the Fourth Amendment and New York State law because they used unreasonable force on plaintiff.

**THIRD CLAIM
(FAILURE TO INTERVENE)**

29. Plaintiff repeats the foregoing allegations.

30. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

31. Accordingly, the defendants who failed to intervene violated the Fourth and Fourteenth Amendments.

32. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

FOURTH CLAIM
(MONELL CLAIM)

29. Plaintiff repeats the foregoing allegations.

30. The City of New York, through a policy, practice and custom, directly caused the constitutional violations suffered by plaintiff.

31. Upon information and belief, the City of New York, at all relevant times, was aware that the defendants are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

WHEREFORE, plaintiff demands a jury trial and the following relief jointly and severally against the defendants:

- i. Compensatory damages in an amount to be determined by a jury;

- ii. Punitive damages in an amount to be determined by a jury;
- iii. Costs, interest and attorney's fees;
- iv. Such other and further relief as the Court may deem just and proper.

DATED: April 25, 2012
New York, New York

HARVIS MARINELLI SALEEM &
WRIGHT LLP

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Christopher D. Wright, Esq.
305 Broadway, 14th Floor
New York, New York 10007
(212) 822-1419
cwright@hmswlaw.com

Attorney for plaintiff